

Tentative Rulings and Resolution Review Hearings
July 27, 2026
Department 64

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

*****IMPORTANT: PLEASE NOTE THAT THE COURT NO LONGER USES COURTCALL. REMOTE APPEARANCES MAY NOW BE MADE THROUGH WEBEX.*****

Remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

To appear through WebEx, please follow these instructions:

Call 1-(844) 517-1271 at least 10 minutes before your hearing start time.

The access code is 2480 682 3750. There is no attendee ID number, so just follow verbal instructions for prompt.

Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

1. Please mute your telephone until your case is called.
2. Please do not place the call on hold.
3. Minimize all background noise during your call.
4. Please identify yourself, each time, prior to speaking with the court.
5. Disconnect when the court has completed your case or cases.
6. The court prohibits the recording of these proceedings.

8:30 a.m. Law and Motion

1-888-4- ABATEMENT, INC. VS. SIEGLOCK

CASE NUMBER: 23CVG-01156

Tentative Ruling on Application for Judgment Debtor Examination: Applicant Northern California Collection Service, Inc., assignee of record, represented by Attorney Steven Cribb, seeks examination of judgment debtor Marc Sieglock. CCP § 708.110 requires personal service to be made on the judgment debtor at least thirty calendar days prior to the examination. No proof of service has been filed. Without timely service on the judgment debtor, the matter is dropped from calendar.

BLY, ET AL. VS. MARQUIS CARE AT SHASTA, ET AL.

CASE NUMBER: 25CV-0209458

Tentative Ruling on Three Motions to Compel Discovery Responses: Plaintiffs Laura Bly, Julie Dowell, and David Eatchell, individually and as successors-in-interest to the Estate of Bettie Eatchel seek an order compelling Defendants' responses to 1) Special Interrogatories, Set One, 2) Form Interrogatories, Set One, and 3) Requests for Production, Set One. Each set of discovery was served on April 1, 2026. No responses have been served. Defendants concede they have not served responses

A party has thirty days after service to respond to a Request for Production, Request for Admissions, Form Interrogatories, or Special Interrogatories. CCP §§ 2031.260(a), 2033.250(a), and 2030.260(a). Not providing a timely response to propounded discovery results in a waiver of objections. CCP §§ 2031.300(a), 2033.280(a), and 2030.290(a). If a party to whom a discovery request is directed fails to serve a timely response, the party propounding discovery may move for an order compelling a response. CCP §§ 2031.300(b) and 2030.290(c).

Plaintiff has provided evidence that Plaintiff propounded the three sets of discovery at issue by mail on April 1, 2026. Defendant's Oppositions concede that responses were not timely served. Defendant argues that they will serve verified code compliant responses without objections prior to hearing on these Motions. There is no evidence before the Court that they have done so. Plaintiff did not request sanctions and did not provide evidence to support the Court's determination of a reasonable amount. Therefore, no sanctions will be imposed.

Plaintiffs' Motions to Compel responses to Special Interrogatories, Set One, Form Interrogatories, Set One, and Requests for Production, Set One are **GRANTED**. Proposed orders have been lodged and will be executed.

IN RE CHRISTIAN

CASE NUMBER: 26PB-0033218

Tentative Ruling on Three Petitions to Approve Minor Compromise: Ashish Christian seeks an order approving the compromise of claim on behalf of his minor son Josiah Christian. California Rules of Court, Rule 7.950 provides that a petition for court approval of a minor's compromise must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise. The Petition provides the required information. Considering the nature of the minor's injuries and full recovery, the Court is prepared to find that the settlement

is in the best interest of the minor, if the voir dire process is completed to the Court's satisfaction.

The Court notes this is not an expedited petition brought on Judicial Council Form MC-350EX. See CRC Rule 7.950.5. Hearing is needed on the Petition before it can be approved. The person seeking approval of the settlement on behalf of the minor and the minor are required to appear at the hearing, unless good cause is presented for their non-appearance. CRC Rule 7.952. The Petitioner and minor are required to appear. Counsel will voir dire the Petitioner about the terms of the settlement, any other potential sources to increase the settlement amount, whether the minor has fully recovered and whether the Petitioner understands that once approved, the settlement is final and binding on the minor. If satisfied, the Court intends to grant the Petition. If granted, the Court will execute the Orders and schedule a hearing for review regarding confirmation of deposit.

CROWELL VS. DAY

CASE NUMBER: 24CH-0204259

Tentative Ruling on Application for Judgment Debtor Examination: Applicant Justin Day, proceeding in pro per, seeks examination of judgment debtor James Dean Crowell. CCP § 708.110 requires personal service to be made on the judgment debtor at least thirty calendar days prior to the examination. Petitioner filed a Proof of Personal Service on July 1, 2026. It states that personal service was accomplished on June 30, 2026 – which is not 30 calendar days prior to today's hearing date. The Court also notes that the Proof of Service for the Memorandum of Costs filed on March 30, 2026 is invalid, because it was served by Petitioner. Service must be made by a nonparty to the case. Without timely service on the judgment debtor, the matter is dropped from calendar.

DURA CRANE, INC. VS. J. L. AMONETT CO.

CASE NUMBER: 25CVG-00038

Tentative Ruling on Motion to Recover Reasonable Attorney Fees: Plaintiff Dura Crane, Inc. moves for an award of reasonable attorneys' fees following entry of judgment in which the Court found in favor of Plaintiff. Although the motion was properly noticed, Defendant Amonett Co. did not oppose the motion.

As the prevailing party, Plaintiff moves for attorney's fees based on the parties' underlying contract. "Except as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties; but parties to actions or proceedings are entitled to their costs, as hereinafter provided." CCP § 1021. Allowable costs include "Attorney's fees, when authorized by any of the following: (A) Contract. (B) Statute. (C) Law." CCP § 1033.5(a)(10).

(a) In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs.

Where a contract provides for attorney's fees, as set forth above, that provision shall be construed as applying to the entire contract, unless each party was represented by counsel in the negotiation and execution of the contract, and the fact of that representation is specified in the contract.

Reasonable attorney's fees shall be fixed by the court, and shall be an element of the costs of suit.
Civ. Code § 1717(a)

Section 7 of the contract states that "[i]f the account is referred to collection the Lessee agrees to pay collection costs and attorney's fees." This case was filed as a breach of contract seeking, among other causes of action, enforcement and collection of payment for the use of rental equipment pursuant to the terms of the contract. Therefore, Section 7 of the contract would apply to this matter. Additionally, in the judgment entered on March 6, 2026, the Court ordered that the judgment include attorneys' fees upon the filing of a motion.

The Court then turns to whether the requested attorneys' fees are reasonable. Plaintiff has provided evidence that Randall Nelson has been a practicing attorney for thirty-four years. The requested hourly rate averages \$413.02. This is reasonable given the length of time that counsel has been practicing. The Court has reviewed the billing records provide and it does not appear that any time spent was unreasonable.

The motion is **GRANTED**. The Court fixes attorneys' fees in this matter at \$4,264.50. Plaintiff provided a proposed Order that will be executed by the Court.

HANNAN VS. ALAMO RV PARK AND MOTEL, LLC, ET AL.
CASE NUMBER: 26CV-0209992

Tentative Ruling on Motion for Leave to file a Second Amended Complaint: Plaintiffs, Ralph Hannan and Renee Hannan, seek leave to file a Second Amended Complaint. The amendments provide additional facts in support of 1) an alter ego theory of liability against Defendant Gary Trolesi; 2) Defendant Alamo RV Park and Motel, LLC ("Alamo"), Gary Trolesi, and Vicki Wilson's knowledge of the subject animal; 3) Defendant Alamo, Gary Trolesi, and Vicki Wilson's negligent supervision, training, control, and retention causes of action; and 4) punitive damages. The Motion is unopposed.

Code of Civil Procedure § 473(a)(1) permits any pleading to be amended in furtherance of justice and on any terms as may be proper, after notice to the adverse party. The Court's discretion in this regard will usually be exercised liberally to permit amendment. *Nestle v. Santa Monica* (1972) 6 Cal. 3d 920, 939. Leave to amend should be liberally granted so long as there is no statute of limitations issue or prejudice to the opposing party. *Harris v. City of Santa Monica* (2013) 56 Cal.4th 203, 240.

Plaintiffs seek to add these supporting facts pursuant to an agreement between Plaintiffs and Defendants Alamo, Gary Trolesi, and Vicki Wilson reached during meet and confer communications to negate the filing of a demurrer to the First Amended Complaint by Defendants. It does not appear any party will be prejudiced by the amendment. The Motion is **GRANTED**. A proposed order has been lodged and will be executed. Plaintiffs are granted ten days leave to file the Second Amended Complaint.

JONES, ET AL. VS. PACIFIC GAS & ELECTRIC, ET AL.

CASE NUMBER: 25CV-0208179

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions (“OSC”) issued on July 7, 2026, to Plaintiff and Counsel for failure to submit a status statement and failure to appear on June 29, 2026. Plaintiff has filed a response, apparently to a prior OSC which issued on April 8, 2026 regarding status of service on Defendant McKenzie. Sanctions were imposed on the prior OSC and have since been paid. Plaintiff has failed to respond to the OSC issued on July 7, 2026 explaining why there was a failure to submit a status statement and failure to appear on June 29, 2026. Sanctions are IMPOSED in the amount of \$250. The 9:00 a.m. review hearing regarding status and trial setting is confirmed.

LAKEVIEW LOAN SERVICING, LLC VS. GONZALEZ, ET AL.

CASE NUMBER: 25CV-0207895

Tentative Ruling on Order to Show Cause Re Sanctions: An Order to Show Cause Re: Sanctions (“OSC”) issued on June 4, 2026 in the amount of \$500.00, to Plaintiff and Plaintiff’s Counsel for their failure to timely serve the complaint as required by CRC 3.110(b). No response has been filed. The complaint remains unserved in violation of CRC 3.110(b). The Court previously imposed sanctions in the amount of \$250 against Plaintiff and Plaintiff’s Counsel pursuant to an Order to Show Cause issued March 20, 2026. Those sanctions have not been paid. No response to the June 4, 2026 OSC has been filed. Sanctions of \$500 will be imposed.

The clerk is directed to prepare a separate Order Imposing Sanctions. The Court will issue an Order to Show Cause Re: Monetary Sanctions in the amount of \$500 to Plaintiff and Plaintiff’s Counsel for their failure to timely serve the complaint as required by CRC 3.110(b). The Court will also issue an Order to Show Cause Re: Dismissal for failure to timely serve pursuant to CRC 3.110(b) and failure to timely prosecute. Hearing on the Order to Show Cause Re: Dismissal will be Tuesday, September 8, 2026 at 8:30 a.m. in Department 64. The clerk is directed to issue an Order to Show Cause Re: Dismissal.

LELAND, ET AL. VS. BOAVIDA COMMUNITIES LLC, ET AL.

CASE NUMBER: 26CVG-00501

Tentative Ruling on Demurrer: Plaintiffs Boavida Communities, LLC, Reddingwood Mobile Home and RV Park, and Rhonda Little demur to Plaintiffs Rhonda Leland and Deborah Shipp’s First Amended Complaint. The Demurrer has been properly noticed and is unopposed.

The action arises out of Plaintiffs’ purchase of, and later eviction from, a mobile home. Plaintiffs generally allege that the sellers concealed material defects in the home and that they sold it through fraud and concealment. They seek rescission and restitution. The causes of action alleged are: 1) Fraud/Intentional Misrepresentation and Concealment, 2) Unlicensed and Noncompliant Mobile Home Sale, 3) Rescission and Restitution, and 4) Equitable Relief from Judgment. Defendants (except for Kimberly Mantovan who has not yet appeared) demur to each cause of action on the grounds of failure to state facts sufficient to constitute a cause of action, as well as uncertainty/ambiguity, and as to the first cause of action only, misjoinder.

Meet and Confer: CCP § 430.41 requires the demurring party to “meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The Declaration of Michael Dean establishes good faith attempts at compliance

with the meet and confer requirements.

Merits: A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

First Cause of Action – Fraud/Intentional Misrepresentation and Concealment. “The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” *Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638. “In California, fraud must be pled specifically; general and conclusory allegations do not suffice. [Citations] Thus the policy of liberal construction of the pleadings . . . will not ordinarily be invoked to sustain a pleading defective in any material respect. [Citation.] This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered.” *Id.* at 645 (internal citations omitted).

Here, Defendants argue that Plaintiff has failed to allege fraud with the requisite specificity. The Court agrees that this cause of action is not adequately pled. Plaintiffs allege material misrepresentations and/or concealment by the Defendants. Specifically at paragraphs 33-34 of the FAC, Plaintiff’s allege that Defendants made false, misleading, and/or incomplete representations regarding who conducted and participated in the sale, their licensing status, the tax/tile-record issues connected to Stephen Root and undisclosed material defects affecting the home. The FAC also alleges justifiable reliance (paragraph 35) and resulting damages (paragraph 36). However, the FAC fails to allege the elements of: 1) knowledge of falsity, and 2) intent to defraud. These elements must also be pled with particularity – specific facts which show who Plaintiff alleges had knowledge of falsity and the intent to defraud. The demurrer as to the first cause of action is **SUSTAINED** with leave to amend on the grounds of failure to state facts sufficient to constitute a cause of action and uncertainty.

Second Cause of Action – Unlicensed and Noncompliant Mobile Home Sale. Plaintiff’s second cause of action generally alleges that the sale of the mobile home was noncompliant because the sale was conducted by an unlicensed salesperson, Rhonda Little, but the sales documentation identified Kimberly Mantovan as the salesperson. Plaintiffs further allege that a licensed dealer or salesperson must conduct a diligent inspection and disclose material facts that would affect value or desirability of the home. Plaintiffs allege Health and Safety Code 18045, 18406, and 18061.5 makes this an unlawful sale. Defendants argue that “noncompliant mobile home sale” is not an independent cause of action, and that Plaintiffs’ remedy was to complain to the Department of Housing and Community Development. The Court agrees with Defendant. The statutes cited above are part of the Manufactured Housing Act of 1980 – Health and Safety Code sections 18000 et seq. The statute provides for system of licensing and enforcement by the Department of Housing and Community Development. This includes the power to issue citations and assess civil penalties

for violations of the act, including the sections alleged in the Complaint. *See* HSC § 18021.7. “A violation of a state statute does not necessarily give rise to a private cause of action. [Citations] Instead, whether a party has a right to sue depends on whether the Legislature has “manifested an intent to create such a private cause of action” under the statute. *Lu v. Hawaiian Gardens Casino, Inc.* (2010) 50 Cal.4th 592, 596. The Court does not find the legislature manifested an intent to create a private cause of action under HSC §§ 18045, 18406, 18061.5, 18062.2. Therefore, the demurrer as to the second cause of action is **SUSTAINED** without leave to amend on the grounds of failure to state facts sufficient to constitute a cause of action.

Third Cause of Action – Rescission and Restitution. Plaintiffs plead rescission and restitution as a stand alone cause of action. Defendant argues that these are forms of relief that may be granted upon proper pleading and proof of certain causes of action. Defendants are correct. “There is no freestanding cause of action for “restitution” in California.” *Munoz v. MacMillan* (2011) 195 Cal.App.4th 648, 661. “[R]escission stands as a contract remedy. [Citations] Rescission is generally understood to mean the “unmaking of a contract.” *People ex rel. Kennedy v. Beaumont Investment, Ltd.* (2003) 111 Cal.App.4th 102, 133. Plaintiffs may be entitled to pray for these remedies, but they do not constitute stand alone causes of action upon which relief may be granted. Therefore, the demurrer as to the third cause of action is **SUSTAINED** without leave to amend on the grounds of failure to state facts sufficient to constitute a cause of action.

Fourth Cause of Action – Equitable Relief From Judgment. Under the fourth cause of action, Plaintiffs allege that “the eviction judgment arose from Defendants’ attempt to terminate the tenancy based on Plaintiffs’ inability to complete repairs by a deadline imposed by Defendants...” (paragraph 48). Plaintiffs go on to request that judgment be vacated or set aside. Defendants argue that the court has no jurisdiction to disturb a final judgment in a separate unlawful detainer action, and that motions to vacate a judgment under CCP 473 must be filed in the case in which they seek relief.

Here, Plaintiff makes an unsupported allegation of extrinsic fraud. As discussed in relation to the first Cause of Action, fraud must be pled with particularity. This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered. Here, Plaintiff merely alleges that “Defendants’ concealment, misrepresentations, and/or incomplete presentation of material facts prevented Plaintiffs from receiving a fair opportunity to present the full defense and related claims.” This is insufficient to overcome the demurrer. As noted in relation to the First Cause of Action, Plaintiffs shall have leave to amend their complaint, if possible to allege fraud and concealment. However, the Fourth Cause of Action alleges a remedy, rather than a cause of action. If the Plaintiffs are able to adequately plea a cause of action for fraud and concealment, they may include as a remedy a request for equitable relief. Otherwise, the Fourth Cause of Action fails to adequately identify a separate viable cause of action and therefore the demur to this cause of action is **SUSTAINED** without leave to amend.

In summary, Defendants’ Demurrer is **SUSTAINED** as to each cause of action. Leave to amend is granted as to cause of action one only. Plaintiffs will have 10 days’ leave from service of notice of entry of order to file a second amended complaint. The proposed order will be modified.

IN RE: MCELMURRY

CASE NUMBER: 26CV-0210018

Tentative Ruling on Petition for Change of Name: Petitioner Kaycee Lynn McElmurry seeks to change her name to Kaycee Lynn James. A proof of publication has been filed; however, it notices an incorrect hearing date. The publication indicates a hearing date of January 26, 2027. Petitioner is ordered to appear today to discuss the publication defect.

SIMS, ET AL. VS. C&M OPPORTUNITIES, LLC, ET AL.

CASE NUMBER: 25CV-0208112

Tentative Ruling on Order to Show Cause Re Sanctions: An Order to Show Cause Re: Sanctions (“OSC”) issued on March 20, 2026, to Plaintiff and Counsel for failure to serve Defendant Christopher Jordan Witcher. Hearing on the OSC was continued from June 15, 2026 to today’s date. Since the June 15, 2026, Plaintiff has had default entered as to Defendant Witcher. The OSC is VACATED. No sanctions will be imposed. No appearances are necessary on the 8:30 a.m. calendar today. The 9:00 a.m. review hearing regarding status and trial setting is confirmed.

VELOCITY INVESTMENTS LLC VS. VELA, JR

CASE NUMBER: 25CV-0208785

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions (“OSC”) issued on June 16, 2026, to Plaintiff and Counsel, for failure to timely seek entry of default as required by CRC 3.110(g). Plaintiff has filed a written response to the OSC. Plaintiff has also submitted a request for entry of default judgment, which is under review by a bench officer. The OSC is **DISCHARGED**. Sanctions will not be imposed. This matter is set for a review hearing on **Tuesday, September 8, 2026 at 9:00 a.m. in Department 64** regarding status of default judgment.

WELLS FARGO BANK, NA VS. BOOTH

CASE NUMBER: 25CVG-00794

Tentative Ruling on Motion for Order that Matters in Requests for Admission of Truth of Facts be Deemed Admitted: This matter is assigned for all purposes to Judge Benjamin L. Hanna who is assigned to Department 63. Plaintiff noticed this motion for Department 64. Due to a clerical error, the Notice of Hearing was not rejected at filing. **This motion will be heard in Department 63, which is next door. If appearing remotely, you will find the WebEx access code on the Tentative Rulings for Department 63.**

9:00 a.m. Review Hearings

B.C. VS. MOCK

CASE NUMBER: 22CV-0201088

This matter is on calendar for review regarding status of criminal proceedings and trial re-setting. An appearance is necessary on today's calendar.

IN RE CHRISTIAN

CASE NUMBER: 26PB-0033218

This matter is on calendar for review regarding status of the litigation. This matter is on calendar at 8:30 a.m. today for hearing on the Petition for Approval of Compromise of Claim For Minor. Appearances are required at 8:30 a.m. today. The 9:00 a.m. review hearing will be advanced to 8:30 a.m. as well. No separate appearances is necessary on the 9:00 a.m. review calendar.

EMERSON-MERTE VS. RICKS, ET AL.

CASE NUMBER: 25CV-0206896

This matter is on calendar for review regarding prove-up setting. Today's review hearing was continued pursuant to the Court's July 13, 2026 Order, to **Monday, September 14, 2026 at 9:00 a.m. in Department 64.** That date is confirmed. No appearances are necessary on today's calendar.

HADLEY, ET AL. VS. AMERICAN HONDA MOTOR CO, INC.

CASE NUMBER: 23CV-0201803

This matter is on calendar for resetting the trial date. The previous trial date of June 30, 2026 was vacated on the court's own motion due to unavailability. The parties are ordered to appear with available trial dates.

JANE MJ DOE VS. SABET, MD, ET AL.

CASE NUMBER: 23CV-0203865

This matter is on calendar for review regarding status of settlement funds and dismissal. Plaintiff's counsel has filed a status report requesting a 45-day continuance for final payment by Defendant pursuant to the terms of the settlement agreement. Plaintiff anticipates a request for dismissal will be filed prior to the future hearing date. Today's hearing is continued to **Monday, September 21, 2026 at 9:00 a.m. in Department 64** for review regarding status of settlement funds and dismissal. No appearances are necessary on today's calendar.

JOHN DINNING VS. STREETER

CASE NUMBER: 24CV-0205655

This matter is on calendar for review regarding status of judgment/dismissal. The Court received and executed a proposed order on April 9, 2026. However, no judgement or request for dismissal has been submitted. Either a judgment or dismissal must be submitted in order to close the case. The Court noted this defect in its June 22, 2026 status hearing ruling, but nothing further has been filed. Appearances are necessary on today's calendar to provide a status of judgment/dismissal.

JONES, ET AL. VS. PACIFIC GAS & ELECTRIC, ET AL.

CASE NUMBER: 25CV-0208179

This matter is on calendar for review regarding status. PG&G Corporation has been dismissed from the action. William Bauer has filed an Answer. No proof of service is on file for Defendant Robyn McKenzie. Plaintiff is ordered to appear to discuss status of service or dismissal of Defendant McKenzie and to set a future review hearing date for trial setting.

LAKEVIEW LOAN SERVICING, LLC VS. GONZALEZ, ET AL.

CASE NUMBER: 25CV-0207895

This matter is on calendar for review regarding status of service. The Complaint was filed on June 9, 2025. No proof of service has been filed. At this morning's 8:30 a.m. Law and Motion calendar the Court intends to impose sanctions and issue an Order to Show Cause re Dismissal for Plaintiff's failure to timely serve the complaint. Today's hearing is continued to **Tuesday, September 8, 2026, at 9:00 a.m. in Department 64** for review regarding status of service. No appearance is necessary on today's calendar.

MINOR VS. ALL AMERICAN HEALTHCARE SERVICES WEST, LLC, ET AL.

CASE NUMBER: 25CV-0207291

This matter is on calendar for review regarding status of arbitration and possible trial setting. The parties have filed a joint status document indicating the matter has been submitted to JAMS, no arbitrator has been appointed, and no preliminary management conference has been scheduled. The parties request a 120-day continuance. Today's review hearing is continued to **Monday, November 23, 2026 at 9:00 a.m. in Department 64** for review regarding status of arbitration. No appearances are necessary on today's calendar.

NELSON, ET AL. VS. CALIFORNIA TRADE AND DEVELOPMENT, ET AL.

CASE NUMBER: 24CV-0206233

This matter is on calendar for review regarding status of arbitration. The Court compelled this matter to arbitration on February 28, 2025. At the prior review hearing on February 23, 2026, the Court was informed that arbitration had not yet occurred. The matter was continued to today with the Court noting that it would consider the issuance of an Order to Show Cause if the matter was not submitted to arbitration. Status Conference statements have been filed which reflect that arbitration has not yet occurred. The statements fail to sufficiently explain the delay in submitting the matter to arbitration. **An appearance is necessary on today's calendar to provide the Court with a status of arbitration.**

SIMS, ET AL. VS. C&M OPPORTUNITIES, LLC, ET AL.

CASE NUMBER: 25CV-0208112 consolidated with 25CV-0208573

This matter is on calendar for review regarding status of default and possible trial setting. Defendant Witcher has been defaulted. Judgement has been entered in favor of Defendant Good News Rescue Mission. The action is at issue and ready to be set for trial as to the remaining parties. This matter is designated a plan II case and the Court intends to set trial no later than December 15, 2026. The parties are ordered to appear today with available trial dates.

THOMAS VS. WALKER

CASE NUMBER: 24CV-0206590

This matter is on calendar for review regarding status of service of summons. The court notes that on March 4, 2026, Plaintiff filed a proof of service showing subservice on Attorney Don Anderson

for Michael Walker on February 26, 2026. The Court previously quashed service of summons as to this individual in an Order dated October 6, 2025, on the grounds that this Michael Walker had established he was incorrectly identified and is not the Michael Walker identified in the Complaint. It appears Plaintiff has simply served this same individual again. An appearance is necessary on today's calendar to discuss status of service.